

15. Local Self Government

Contents

15.1 Introduction.....	1
15.2 Local Self-Government.....	1
15.3 History of Local Administration.....	1
15.4 Panchayati Raj System under 73rd and 74th Amendment Acts, 1992.....	2
15.5 Elections Held in the Local Government Bodies.....	2
15.6 Qualifications Needed to be a Member of the Panchayat or Municipality.....	3

15.1 Introduction

- India has governments at the Central and State levels, but there is also another system called local government.
- The Panchayati Raj System (1992) is the foundation of local self-government in India.
- The idea of Panchayati Raj came from old village communities that managed themselves.
- In the Rig Veda period (around 1700 BC), villages had self-governing bodies called 'Sabhas'. Over time, these became Panchayats (council of five people).
- Panchayats were important local bodies that helped govern villages throughout Indian history.
- They continued to exist from ancient times up to the present government system.

15.2 Local Self-Government

- Local Self-Government means giving power to the people at the lowest level of government.
- It is a democratic system where local people take part in managing local affairs and making decisions.

15.3 History of Local Administration

- The village Panchayat system started during British rule to meet people's local needs.
- It allowed citizens to take part in running the local government.
- The Government of India Act, 1935 also gave provinces the power to make local laws.
- After independence, India improved this system through several committees:
 - Balwant Rai Mehta Committee (1957)
 - Ashok Mehta Committee (1977–1978)
 - G. V. K. Rao Committee (1985)
 - L. M. Singhvi Committee (1986)

- The 64th Constitutional Amendment Bill was first introduced in 1989, but it was not passed by the Rajya Sabha.
- Later, under Prime Minister Narasimha Rao, the idea became reality through the 73rd and 74th Constitutional Amendment Acts (1992).

15.4 Panchayati Raj System under 73rd and 74th Amendment Acts, 1992

- The 73rd and 74th Amendment Acts (1992) added Part IX and Part IX-A to the Constitution of India.
- These parts officially recognized and strengthened the local self-government system in rural and urban areas.
- Two new schedules were added — Schedule 11 and Schedule 12. They list the subjects under Panchayats and Municipalities.
- The system has three levels of Panchayati Raj — village, intermediate, and district levels.

Panchayat and Municipality

- Panchayat and Municipality are general names for local governing bodies.
- Both have a three-level system — lower, middle, and upper levels.
- The 73rd Amendment created the Gram Sabha as the base of the Panchayati Raj system.
- A Gram Sabha means a meeting of all registered voters in a village area.
- The State Government decides what powers and duties the Panchayat will have at the village level.

Types of Municipalities (74th Constitutional Amendment Act)

- Nagar Panchayat – for an area changing from rural to urban.
- Municipal Council – for a small urban area (like a town).
- Municipal Corporation – for a large urban area (like a city).
- Municipalities represent urban local self-government.
- Both Panchayats and Municipalities follow similar rules, with small differences based on whether the area is rural or urban.
- Each Gram Sabha represents one ward (a local area).
- Every ward elects one representative through direct election.
- The Chairperson at higher levels (intermediate and district) is indirectly elected by representatives from the lower level.

15.5 Elections Held in the Local Government Bodies

- All members of local bodies are chosen by direct elections (people vote directly).
- State Election Commission manages these elections.
- Chairpersons at intermediate and district levels are indirectly elected (chosen by lower-level representatives).
- At the village level, the Chairperson (Sarpanch) can be chosen directly or indirectly, depending on state law.

- Seats are reserved for Scheduled Castes (SC), Scheduled Tribes (ST), and Women (one-third of all seats).
- Reserved seats are rotated so that different people get a chance.
- States must also keep reserved seats for women at all levels, including within SC and ST categories.
- The State Legislature makes laws about all matters related to local elections.

15.6 Qualifications Needed to be a Member of the Panchayat or Municipality

- Anyone who is qualified to be a member of the State Legislature can also be a member of the Panchayat or Municipality.
- A person must be at least 21 years old to become a member of a Panchayat or Municipality.
(This is different from the State Legislature, where the minimum age is 25 years.)
- The members of local government bodies are elected for 5 years.
- New elections must be held before the 5-year term ends.
- If a Panchayat or Municipality is dissolved early, new elections must be held within 6 months.
- The newly elected Panchayat or Municipality will serve only for the remaining period of the original 5-year term (if more than 6 months are left).